Technical dictionary

Short editorial definitions for use with the reading translation. Section references return to the text.

adāʾ أَدَاء

Timely performance: discharging an act within its legally appointed time; distinguish repetition and make-up performance.

§57 · §59

ʿadāla عَدَالَة

Probity: a disposition supporting a transmitter's reliability, not a claim that every lapse destroys credibility.

§86 · §87 · §90 · §98

ʿāmm عَامّ

General expression: wording embracing the instances of a meaning. Do not confuse this linguistic scope with several equivocal meanings.

§169 · §170 · §174 · §177

ʿaql عَقْل

Intellect or reason; its relation to goodness, obligation and revealed authority is discussed without making theology the whole of uṣūl.

§11 · §13 · §37 · §45

aṣl أَصْل

Foundation, source, original case, or governing principle. In qiyās it is the case or meaning from which extension proceeds.

§62 · §141 · §210 · §212

ʿazīma / ʿazm عَزِيمَة / عَزْم

Original legal requirement, contrasted with a concession. The text uses the vocabulary of the unrelaxed requirement in defining the contrast.

§60

barāʾa aṣliyya بَرَاءَة أَصْلِيَّة

Original freedom from liability: obligation requires a warrant; absence of such a warrant is not itself a newly revealed duty.

§141 · §142 · §247

bāṭil / buṭlān بَاطِل / بُطْلَان

Invalid / invalidity. In contracts, absence of the intended legal effect; invalidity is not interchangeable with moral prohibition.

§28 · §56 · §206

bayān بَيَان

Clarification: whatever validly brings a meaning to understanding, including wording, context and explanatory action.

§159 · §160 · §161 · §228

burhān بُرْهَان

Demonstration or conclusive proof. Its logical analysis belongs to a different discipline from the present abridgement's immediate task.

§9 · §15 · §75

dalāla دَلَالَة

Indication or signification: the relation by which words, understood meanings, acts or approval make a ruling intelligible.

§148 · §149 · §150 · §193

dalīl دَلِيل

Evidence, indicator or proof. Its strength may be conclusive or probable; "proof" does not always mean logical demonstration.

§62 · §74 · §81 · §241

dalīl al-khiṭāb دَلِيل الْخِطَاب

Contrary implication inferred from a restriction, condition or qualification. Its force depends on context, not form alone.

§193 · §195

ḍamīr ضَمِير

Pronoun: an expression whose referent can be determinate or ambiguous; reference is one component of verbal indication.

§152 · §157 · §158

ḍarūra ضَرُورَة

Necessity or constraint. In practical law it can ground a concession; this is distinct from the epistemic sense of necessary knowledge.

§53 · §60

ḍarūrī ضَرُورِيّ

Necessary; in knowledge, immediately or inevitably known rather than acquired through a consciously constructed argument. In the title, what is indispensable to the craft.

§1 · §2 · §15 · §76

ḍidd ضِدّ

Contrary: opposed acts or qualities. Whether alternatives exhaust the possibilities is crucial to the argument about commands and prohibitions.

§26 · §32 · §33 · §34 · §52

farʿ فَرْع

Derivative case or branch of law; in qiyās, the case whose ruling is sought through a relation to the original.

§2 · §210 · §211

farḍ فَرْض

Obligatory requirement. The discussion records a distinction from wājib made by some jurists and its evidential basis.

§17

fasād فَسَاد

Corruption or invalidity; in legal use, failure of an act or contract in the respect relevant to its ruling.

§28 · §29 · §56 · §206

fiʿl فِعْل

Act: voluntary human performance or Prophetic action. An act has no imperative grammatical form of its own.

§43 · §150 · §228 · §229

fiqh فِقْه

Understanding of practical legal rulings. Detailed branch-law learning is related to, but not identical with, the requirements of independent inquiry.

§2 · §235 · §252

furūʿ فُرُوع

Branches or derivative rulings, distinguished from sources and the general method for understanding their indications.

§2 · §235 · §252

ghalabat al-ẓann غَلَبَة الظَّنّ

Preponderant judgement: the balance of probable evidence which guides action; it does not create truth merely through preference.

§90 · §237 · §241 · §257

ghāya غَايَة

End or limit. In a temporal expression such as “until night,” it means an endpoint, not a purposive final cause.

§2 · §195

ḥadd حَدّ

Definition or boundary. In another context, a prescribed penalty; these senses must not be collapsed into one English rendering.

§10 · §11 · §219

ḥadīth حَدِيث

A transmitted report, especially one attributed to the Prophet. The discussion distinguishes its wording, content, chain and resulting degree of assent.

§66 · §80 · §109 · §233

ḥākim حَاكِم

One who determines or commands; in the account of legal judgement, ultimately God, with derivative human authority distinguished.

§36 · §37

ḥaqīqa حَقِيقَة

Proper or literal usage, opposed to transferred or figurative usage; context determines which sense is established.

§65 · §153 · §162 · §164

ḥaraj حَرَج

Restriction, difficulty or legal impediment; removing a prohibition need not itself issue a positive recommendation.

§60 · §203

ḥarām حَرَام

Forbidden: subject to legal prohibition. Whether a forbidden act is also invalid is a further issue.

§17 · §28 · §206

ḥaṣr حَصْر

Restriction or exclusive limitation, conveyed by expressions such as innamā; its contrary implication is assessed contextually.

§195

ḥiss حِسّ

Sense perception. Actual sensory apprehension, not mere perceptibility, matters in the account of transmitted certainty.

§15 · §45 · §77 · §78

ḥujja حُجَّة

Authoritative evidence or argument capable of supporting a legal conclusion; its authority and degree of certainty are separate questions.

§1 · §81 · §130 · §144

ḥukm حُكْم

Judgement or ruling: the legal determination concerning an act, with its author, addressee and object analysed separately.

§10 · §11 · §17 · §36 · §239

ḥusn / qubḥ حُسْن / قُبْح

Goodness / badness: evaluative terms whose intrinsic, relational and revealed senses are distinguished at the beginning of the book.

§11 · §12 · §13

ʿibāda عِبَادَة

Worship or devotional observance. Its valid performance, intention and timing are analysed without identifying all legal consequences with worship.

§43 · §56 · §57

ibāḥa إِبَاحَة

Permission: a legal allowing of alternatives, distinguished from obligation and from mere absence of an established prohibition.

§16 · §17 · §27 · §203

ibdāl / tabdīl إِبْدَال / تَبْدِيل

Substitution: expression of a universal through a particular or vice versa, central to Ibn Rushd's account of semantic extension.

§154 · §165 · §191 · §212 · §221

idhn إِذْن

Permission or authorization; its context matters in reports about guardianship and in a teacher's authorization to transmit.

§103 · §171

ijāza إِجَازَة

Authorization to transmit, distinguished from hearing a reading, reading before the teacher, and receiving a written text.

§100 · §103 · §104

ijmāʿ إِجْمَاع

Consensus: agreement of those competent in the relevant inquiry. Mere majority, silence and unidentified Medinan practice are not equivalent to it.

§130 · §133 · §134 · §137 · §138

ijtihād اجْتِهَاد

Independent juristic inquiry: exertion of competent judgement concerning a ruling not already determined by conclusive evidence.

§231 · §236 · §237 · §250

ijzāʾ إِجْزَاء

Sufficiency or discharge: performance which fulfils the legally required act, including its relevant conditions.

§23 · §56 · §204 · §205

ʿilla عِلَّة

Effective ground or explanatory feature connecting a ruling with a case. It must be distinguished from a general benefit or an accidental concomitant.

§210 · §213 · §217 · §218 · §222

ʿilm عِلْم

Knowledge, sometimes certain cognition and sometimes a discipline. Its theoretical, practical and instrumental ends are distinguished.

§2 · §8 · §74 · §75

imkān إِمْكَان

Possibility: physical capacity to perform an act is not the same as the presence of every legal condition governing it.

§45 · §49 · §50

iqrār إِقْرَار

Tacit approval: the Prophet's non-objection in relevant circumstances, indicating permissibility rather than automatically establishing obligation.

§150 · §227

irāda إِرَادَة

Will or volition. Its relation to desire, assent and intending obedience is discussed in the account of voluntary action.

§43 · §44

ishtirāk اشْتِرَاك

Equivocation: one expression's established use for distinct meanings, not the inclusion of many instances within a single general meaning.

§158 · §177

istiʿāra اسْتِعَارَة

Transfer or metaphorical borrowing of an expression, one way words can signify beyond their original assignment.

§153 · §164 · §180

istidlāl اسْتِدْلَال

Inference or reasoning from an indication to what it establishes. It need not be a formal syllogism.

§1 · §2 · §81 · §148

istiḥsān اسْتِحْسَان

Juristic preference. A judgement so named needs a recognized evidential warrant; its name does not confer authority.

§146

istiqrāʾ اسْتِقْرَاء

Induction: discerning a pattern from cases, including the recovery of early jurists' implicit methods from their decisions.

§4 · §217

istiṣḥāb اسْتِصْحَاب

Presumption of continuity: retaining an established judgement, subject to whether the relevant case or attribute has changed.

§141 · §142

istiṣlāḥ اسْتِصْلَاح

Welfare-oriented reasoning. The Darūrī asks what makes a proposed benefit legally authoritative rather than merely attractive.

§146 · §217

istithnāʾ اسْتِثْنَاء

Exception: exclusion related to a statement's scope, with distinct problems of connection, reach and the genus excepted.

§183 · §184 · §185 · §186 · §187 · §188

jarḥ جَرْح

Criticism of a narrator's credibility or probity; the grounds and relative force of such criticism require assessment.

§94 · §95 · §96

jins جِنْس

Genus or kind: a grouping by an intelligible common feature, important in classification and in recognized suitable grounds.

§185 · §217 · §224

juzʾī جُزْئِيّ

Particular: an individual case or more restricted meaning relative to a universal. It is not simply a grammatical "specific expression."

§2 · §165 · §191 · §212

kalām كَلَام

Speech; also rational theology. Which sense applies depends on the argument, and the latter is not the whole subject of uṣūl.

§9 · §41 · §63 · §235

karāha كَرَاهَة

Dislike or disapproval, sometimes distinguished from strict prohibition; the required contextual indication must be examined.

§17 · §29 · §208

kasb / iktisāb كَسْب / اكْتِسَاب

Acquisition: the disputed account of human agency, choice and voluntary action. The reported theological positions are not all Ibn Rushd's own.

§43 · §44 · §45

khabar خَبَر

Report: a communicated assertion assessed through its source, wording and evidential consequences.

§66 · §74 · §80 · §109

khabar al-wāḥid خَبَر الْوَاحِد

Solitary report: a report not attaining the certainty of mass transmission; "solitary" does not necessarily mean only one transmitter at every stage.

§79 · §81 · §83 · §112

khāṣṣ خَاصّ

Specific expression: wording directly designating a restricted subject, which may nevertheless indicate an intended universal through context.

§165 · §191

khaṭaʾ خَطَأ

Error: failure to attain the true ruling or perform correctly. It can be pardoned without becoming correctness.

§237 · §243 · §244 · §245

khiṭāb خِطَاب

Address or discourse: the Lawgiver's communication as directed to an addressee concerning an act; context is constitutive of understanding.

§11 · §36 · §38 · §239

kināya كِنَايَة

Indirect expression: signifying by an associated meaning rather than simply naming the referent directly.

§164 · §167

kullī كُلِّيّ

Universal: a meaning under which particulars fall, crucial to understanding legal extension beyond a named example.

§2 · §165 · §191 · §212 · §221

lafẓ لَفْظ

Expression or wording; its verbal form is distinguished from the meaning indicated in the whole discourse.

§109 · §148 · §149 · §153

mafhūm مَفْهُوم

Understood import: the meaning apprehended through an expression and its context, including but not limited to contrary implication.

§149 · §193 · §194 · §195

maḥkūm ʿalayhi مَحْكُوم عَلَيْهِ

The person to whom the ruling applies; understanding, capacity and other conditions affect the nature of the address.

§36 · §38 · §42

maḥkūm fīhi مَحْكُوم فِيهِ

The act or matter about which a legal judgement is made; distinguish the person addressed by it.

§36 · §43

majāz مَجَاز

Figurative or transferred usage. It includes omission, addition and substitution, not merely literary metaphor.

§65 · §153 · §154 · §162 · §164

makrūh مَكْرُوه

Disapproved or disliked, one of the fivefold legal classifications; use in context can require distinction from outright forbiddance.

§17 · §208

maʿlūl مَعْلُول

That explained or grounded by an ʿilla; correspondence with a feature does not by itself establish explanatory dependence.

§210 · §220 · §222

maʿnā مَعْنَى

Meaning, intelligible content or relevant feature. Translating it uniformly as "cause" would conceal important distinctions.

§149 · §158 · §193 · §212

mandūb مَنْدُوب

Recommended: an act commended without being obligatorily demanded. Its contrary does not acquire a ruling by a purely verbal inversion.

§17 · §32 · §208

manṭūq مَنْطُوق

What is explicitly expressed, contrasted with the unmentioned case or the meaning understood beyond verbal form.

§149 · §191 · §210 · §212

maqṣūd مَقْصُود

What is intended: the intelligible aim of the address, recovered through indications rather than supplied by arbitrary preference.

§161 · §191 · §217 · §239

maʿqūl مَعْقُول

Intelligible meaning or object of understanding. In legal interpretation it contrasts with reliance upon verbal form alone.

§149 · §193 · §212

mashhūrāt مَشْهُورَات

Widely accepted propositions; general acceptance alone does not establish rational necessity or demonstrative truth.

§12

maṣlaḥa مَصْلَحَة

Benefit or welfare. Its legal authority depends on its relation to recognized purposes or evidence, not on attractiveness alone.

§146 · §217

mithāl مِثَال

Example or illustrative case; its relation to a universal meaning must be distinguished from a merely verbal likeness.

§1 · §6 · §212

muʾawwal مُؤَوَّل

Interpreted wording: an expression taken in a less immediately apparent sense because an adequate indication supports that reading.

§151 · §164 · §166

mubāḥ مُبَاح

Permitted: not demanded or forbidden in the respect being considered. Its status as “commanded” is itself disputed.

§16 · §17 · §27

mudrak مُدْرَك

Source or means of apprehension: where or how a judgement is known. The lexical vocalization has an initial ḍamma.

§13 · §47

mujmal مُجْمَل

Indeterminate wording or indication, insufficient by itself to select the required meaning; clarification can come through several kinds of evidence.

§151 · §155 · §158 · §214 · §218

mujtahid مُجْتَهِد

One qualified to undertake independent juristic inquiry; competence may concern a determinate question rather than every branch of law.

§231 · §232 · §233 · §234 · §236

mukallaf مُكَلَّف

A person subject to legal responsibility; physical action, comprehension and the relevant legal conditions must be distinguished.

§38 · §42 · §45 · §50

mukhayyil مُخَيِّل

A ground presenting a plausible rationale for a ruling, often considered with suitability. Not “imaginal” in the metaphysical sense.

§217 · §224

mulāʾim مُلَائِم

Congruent or fitting: a proposed ground related to a kind of consideration which revelation has recognized.

§217 · §224

munāsib مُنَاسِب

Suitable: a proposed ground connected intelligibly with a legally recognized benefit or prevention of harm.

§217 · §224

munāwala مُنَاوَلَة

Handing over a written text with authorization to transmit; distinct from direct hearing and a bare written attribution.

§104 · §105

muqaddima مُقَدِّمَة

Premise, or an introductory discussion. Premises can contribute to assent without being consciously arranged as a syllogism.

§9 · §75 · §76

muqayyad مُقَيَّد

Qualified: wording limited by a condition or attribute. Moving a qualification between contexts requires a warrant.

§189 · §195

mursal مُرْسَل

A report whose chain leaves an intermediary unmentioned; acceptance is discussed separately from connected transmission.

§111

musnad مُسْنَد

A report with an articulated connected attribution; its comparative force still depends on the relevant transmitters and circumstances.

§111

mutawātir مُتَوَاتِر

Mass-transmitted: a mode of communication yielding certainty through the circumstances of its transmission, not a universally fixed count.

§75 · §76 · §78

muṭlaq مُطْلَق

Unqualified: wording without a stated restriction in the relevant respect. Unqualified and general are not simply interchangeable categories.

§189 · §201 · §203

nadb نَدْب

Recommendation, distinct from obligation; its establishment depends on the relevant usage and indication.

§17 · §200 · §208

nahy نَهْي

Prohibition or prohibitive address. Its force, contextual restriction and possible effect on validity need separate analysis.

§28 · §197 · §206 · §208

naql نَقْل

Transmission; also a word's transfer from one usage to another. Context distinguishes the two technical senses.

§66 · §153 · §256

naskh نَسْخ

Abrogation: termination of an earlier legal ruling by later revelation; not identical with specification or additional explanation.

§114 · §115 · §118 · §126 · §181

naṣṣ نَصّ

Unambiguous indication: a determinate meaning, not simply any "text." The book admits unambiguity through understood import as well as wording.

§151 · §157 · §193 · §215

naẓar نَظَر

Inquiry or reflective consideration, including the disciplined examination of evidence; more specific than casual "looking."

§1 · §13 · §45 · §148

niyya نِيَّة

Intention: aiming at obedience or distinguishing a particular performance; not every legal effect depends on such an intention.

§22 · §43 · §47

qaḍāʾ قَضَاء

Make-up performance outside the appointed time; also judgement in other contexts. Whether it needs a distinct command is a central question.

§51 · §57 · §204

qarīna قَرِينَة

Contextual indication: verbal or circumstantial evidence that guides meaning, interpretation or an extension beyond the named case.

§161 · §166 · §193 · §213

qaṭʿī قَطْعِيّ

Conclusive: an indication or judgement not merely probable. Degrees of evidential clarity remain important for culpability.

§74 · §125 · §237 · §244

qiyās قِيَاس

Analogy or syllogistic inference, depending on context. Much juristic qiyās is analysed here as substitution within an understood meaning rather than a syllogism.

§210 · §212 · §223 · §226

qiyās al-shabah قِيَاس الشَّبَه

Analogy of resemblance: extending a ruling because a likeness is thought to contain a shared ground, without identifying that ground securely.

§218 · §224

qurʾ قُرْء

An equivocal legal expression for a menstrual period or a period of purity, used as an example of indeterminate wording.

§158

rāwī رَاوٍ

Narrator or transmitter. Reception, retention, probity, attribution and denial are separate aspects of assessment.

§83 · §85 · §94 · §107

rukhṣa رُخْصَة

Concession: a legally warranted relaxation under an impediment or need; not mere indulgence outside the Law.

§58 · §60

sabab سَبَب

Cause, occasion or sign. A legal cause may manifest a ruling without producing it as a physical cause produces an effect.

§54 · §55 · §176

sabr wa-taqsīm سَبْر وَتَقْسِيم

Testing and division: enumerating and examining candidates for a relevant ground, then eliminating those not warranted.

§220 · §221

ṣaḥīḥ / ṣiḥḥa صَحِيح / صِحَّة

Valid / validity; also soundness of a report in transmission. The intended legal or hadith sense must be specified.

§56 · §93 · §205

ṣalāḥ صَلَاح

Welfare, right ordering or fitness; its appearance in a proposed rationale must be disciplined by the Law's recognition.

§19 · §146 · §217

sharʿ شَرْع

Revealed Law or revelation as normative authority; distinguish its address from the jurist's reconstruction of a ruling.

§11 · §13 · §37 · §239

sharṭ شَرْط

Condition: a qualification for a legal ruling or valid performance; not every legal condition is a condition of physical possibility.

§23 · §49 · §50 · §56 · §195

shubha شُبْهَة

Ground of uncertainty or apparent likeness. Its exact force varies between evidential doubt and a proposed analogy.

§92 · §218 · §238

sibār سِبَار

Probe or testing instrument: the opening image for a discipline that guides the mind. It is not the name of a separate metaphysical science.

§2

ṣīgha صِيغَة

Verbal form: grammatical or conventional expression as distinct from the meaning understood in context.

§149 · §151 · §197 · §223

ṣināʿa صِنَاعَة

Craft or disciplined art: an organized competence governed by methods and standards, not modern industrial production.

§1 · §2 · §6 · §9

sunna سُنَّة

Prophetic normative teaching and practice; “it is Sunna” as a transmission formula must be assessed for its source and scope.

§66 · §71 · §114

taʿāruḍ تَعَارُض

Conflict of evidence: an apparent opposition requiring assessment of reconciliation, chronology, preference or suspension.

§96 · §181 · §229 · §246

taʿdīl تَعْدِيل

Attestation of probity, distinct from criticism and from an automatic guarantee of every report.

§94 · §95 · §96 · §97

takhṣīṣ تَخْصِيص

Specification: restricting a general expression’s scope on adequate evidence; chronology helps distinguish it from abrogation.

§174 · §181 · §182 · §190

taklīf تَكْلِيف

Legal responsibility or imposition of a duty, directed to an agent under conditions of comprehension and capacity.

§17 · §38 · §42 · §45

ṭaliba طَلِبَة

Request or petition, one of the forms of complete discourse. This is the noun for a request, not the plural ṭalaba, “students.”

§152 · §197

tamthīl تَمْثِيل

Exemplification or reasoning by a comparable particular; do not assume that every legal extension has this structure.

§1 · §210 · §212 · §223

tanbīh تَنْبِيه

Indication or directing attention to an unstated meaning, often through the relation between a named particular and an intended universal.

§191 · §209 · §212 · §215

taqlīd تَقْلِيد

Following another’s authority. Trustworthy expert reliance is distinguished from treating memorized school opinions as independent evidence.

§249 · §250 · §251 · §252 · §255

tarjīḥ تَرْجِيح

Giving greater weight: preferring the stronger evidence or judgement on a relevant ground, not free personal choice.

§96 · §246 · §256 · §257

taṣdīq تَصْدِيق

Assent to an assertion. Its cause, necessity and degree are discussed especially in the analysis of mass transmission.

§15 · §44 · §74 · §75 · §76

taṣwīb تَصْوِيب

Declaring juristic conclusions correct; the debate asks whether every qualified conclusion is true or whether one determinate ruling is sought.

§237 · §239 · §240 · §243

taʾthīm تَأْثِيم

Attribution of sin. Its absence does not entail the absence of error; knowledge and the accessibility of evidence matter.

§242 · §243 · §244 · §245

tawaqquf تَوَقُّف

Suspension of judgement when the evidence does not justify a determinate conclusion; distinct from arbitrary choice.

§229 · §246

tawātur تَوَاتُر

Mass transmission producing certainty, whose conditions are contextual and not captured by a single numerical threshold.

§74 · §75 · §76 · §78

taʾwīl تَأْوِيل

Interpretation supported by evidence, especially departure from an expression’s apparent meaning to a less evident one.

§164 · §166 · §171

tawqīf تَوْقِيف

Dependence on revealed instruction; in §229 the printed term is understood contextually as withholding judgement. Note the distinct usages.

§49 · §229

ʿumūm عُمُوم

Generality: inclusion of the instances falling within a meaning. Its force differs across forms and contexts.

§169 · §170 · §174 · §178

ʿumūm al-balwā عُمُوم الْبَلْوَى

Widespread practical need: a consideration in assessing whether a solitary report plausibly preserves a generally required observance.

§112 · §113

ʿurf عُرْف

Established usage or convention, linguistic or legal; a command's force must be learned in its relevant convention.

§153 · §199 · §200 · §203

uṣūl al-fiqh أُصُول الْفِقْهِ

Principles of jurisprudence: in this abridgement, above all the disciplined understanding of revealed indications and the means of reaching rulings.

§1 · §2 · §5 · §6 · §148

waḍʿ وَضْع

Assignment or institution of a word's meaning; distinguish original linguistic assignment from subsequent transfer and specialized legal usage.

§153 · §199

wājib وَاجِب

Obligatory: legally demanded. Alternative duties, extended times, necessary means and culpability prevent a merely schematic definition from doing all the work.

§17 · §18 · §21 · §23 · §243

yaqīn يَقِين

Certainty: assent not merely outweighed probability. Its sources and possible degrees are discussed without reducing it to a transmitter count.

§74 · §75 · §78 · §125

ẓāhir ظَاهِر

Apparent or prima-facie indication: the meaning more readily warranted, though another remains possible. It can arise from understood import as well as verbal form.

§164 · §166 · §193 · §224

ẓann ظَنّ

Probable judgement: an evidentially grounded but nonconclusive assent, not necessarily a pejorative "guess."

§74 · §79 · §90 · §237 · §257

ziyāda زِيَادَة

Addition: extra wording in a report, an added legal requirement, or linguistic surplus; these distinct contexts have different rules.

§108 · §118 · §154

Textual reference concordance · R ↔ BA

R numbers identify this reading edition's 258 sections. BA numbers identify Bou Akl's printed 2015 subdivisions. Arabic page references remain those of the printed editions.

R 001 · BA 1 · Arabic 1994 p. 34 / 2015 p. 118

R 002 · BA 2 · Arabic 1994 p. 34, 35 / 2015 p. 118

R 003 · BA 3 · Arabic 1994 p. 35 / 2015 p. 120

R 004 · BA 4 · Arabic 1994 p. 36 / 2015 p. 120

R 005 · BA 5 · Arabic 1994 p. 36 / 2015 p. 120

R 006 · BA 5–7 · Arabic 1994 p. 36, 37 / 2015 p. 120

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Applications in the Bidāyat al-mujtahid

Editorial comparisons, not Ibn Rushd's text. These examples do not constitute a complete legal commentary.

18 · Marriage: one form of act, different legal rulings

Marriage · ch. 1, preliminaries, issue 1: the legal status of marriage

The majority recommend marriage; the Ẓāhirīs require it; later Mālikīs distinguish obligatory, recommended and permitted marriage according to the person's circumstances. Ibn Rushd identifies both the interpretation of imperative expressions and an appeal to welfare as causes of the disagreement. This illustrates the distinction between an act's general description and the ruling applicable to a situated agent. It does not prove that an imperative by itself encodes all those contextual differences. The welfare argument reported here should also be compared with the stricter controls of Darūrī §§146 and 217.

§18 · §197 · §200 · §217

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23 · Wiping the head: a minimum performance and a contested particle

Purification from ritual impurity · Book of Wuḍūʾ, ch. 2, issue 6: the extent of wiping the head

Mālik requires the whole head, al-Shāfiʿī allows part, and Abū Ḥanīfa specifies a quarter. Ibn Rushd relates the disagreement to the bāʾ in Q 5:6—whether emphatic or partitive—and to reports describing the Prophet's wiping. Even on the emphatic reading, the amount satisfying the name of the act remains disputed. This is a representative application of the Darūrī's minimum-sufficiency problem, but one in which grammar and transmitted practice jointly determine the legally adequate minimum.

§23 · §165 · §205

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28 · Proposing over another proposal: prohibition and contractual effect

Marriage · ch. 1, preliminaries, issue 3: proposing over another man's proposal

Jurists distinguish the prohibition of intervening in an existing proposal from the validity of the ensuing marriage. Ibn Rushd records invalidation by Dāwūd, validity according to al-Shāfiʿī and Abū Ḥanīfa, and differing Mālikī outcomes. The question is whether the forbidden preliminary act vitiates the contract or is an independently culpable circumstance. Read this alongside the Darūrī's distinctions of aspect and the later question whether prohibition entails invalidity; the note identifies a legal parallel, not an explicit cross-citation between the books.

§28 · §56 · §206

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38 · Zakāt on a child's property: worship or a claim upon wealth?

Zakāt · first division: those liable; property belonging to minors

Mālik, al-Shāfiʿī and others impose zakāt on a minor's property; other views exempt it or distinguish agricultural produce. Ibn Rushd identifies the underlying question: is zakāt principally worship requiring adult responsibility, or a financial right of the poor in wealth? The latter need not depend on the owner's puberty. This demonstrates why exemption from direct moral obligation does not automatically remove every legal consequence affecting a child's property.

§38 · §42 · §55

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43 · Intention in ablution: devotional act and intelligible cleansing

Purification from ritual impurity · Book of Wuḍūʾ, ch. 2, issue 1: intention as a condition of validity

Mālik, al-Shāfiʿī and others require intention; Abū Ḥanīfa and al-Thawrī do not. Ibn Rushd locates ablution between pure devotion and an act whose cleansing purpose is intelligible. The relevant inquiry is which resemblance governs its legal classification. Read beside Darūrī §43, this shows that intending obedience and performing an objectively effective act are distinguishable questions, and that a condition of worship cannot simply be transferred to every act associated with worship.

§43 · §56 · §218

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47 · Coerced divorce: voluntary utterance is not sufficient freedom

Divorce · second division, ch. 2: the person whose divorce is legally effective; coerced divorce

Abū Ḥanīfa treats the coerced utterance as effective, whereas Mālik, al-Shāfiʿī and others do not. Ibn Rushd locates the dispute in the sense of choice: the speaker chooses the words, but the threat may still make him "coerced" in the Law's usage. He invokes Q 16:106 against identifying every chosen utterance with unqualified freedom. This sharpens Darūrī §47: physical possibility, intention, legal coercion and the effect of an act must be distinguished.

§47 · §43 · §45

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55 · Financial maturity: an operative condition or its official recognition?

Interdiction · ch. 2: release of minors from interdiction; those under an executor

Some Mālikī positions continue to invalidate transactions until an executor or judge formally releases the ward. Ibn al-Qāsim gives decisive weight to actual maturity or improvidence. Ibn Rushd criticizes treating the continued formal status as controlling when maturity is established: the operative consideration is maturity, not the judge's declaration. This provides an institutional illustration of the difference between a condition's existence and a procedure which establishes or announces it, without reducing all judicial acts to mere factual reports.

§55 · §42 · §56

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56 · A remoter guardian: invalidity, permission, or ratification

Marriage · ch. 2; conditions of contract; guardians, third topic, issue 1: a remoter guardian contracts while the nearer is present

For the cases under discussion, Mālik's transmitted positions include invalidity, validity and dependence on the nearer guardian's approval. Ibn Rushd explains the alternatives through three questions: is priority a rule of revelation at all; if so, is it the nearer guardian's right; or is it a right of God? These yield, respectively, validity, a ratifiable contract, or invalidity. The ruling is not produced simply by attaching the word "condition" to priority. The discussion excludes certain father–virgin-daughter and executor cases from that threefold variation.

§56 · §36 · §54

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58 · A traveller who fasts: an implied condition in the verse

Fasting · ch. on those permitted to break the fast; the traveller's performance of the fast

A minority requires the travelling person to make up the days even if he fasts; the majority accepts his fast. Ibn Rushd connects the disagreement to whether Q 2:184 implicitly says "and breaks the fast" before requiring other days, alongside reports allowing travelling Companions to fast or refrain. This illustrates both the classification of a concession and the interpretation of an omitted condition. It must not be read as though the mere grammatical form settled the whole dispute.

§58 · §155 · §194

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64 · The basmala: Qurʾānic wording and membership in a sūra

Prayer · third division, verbal constituents, issue 4: reciting the basmala

The practical disagreement concerns reciting the basmala and whether aloud or silently. Ibn Rushd separates uncertainty about its status as a verse of al-Fātiḥa from denying that the wording is Qurʾānic at all. He also analyses conflicting reports of the Companions' practice. This parallels Darūrī §64, while warning against an over-simple appeal to mass transmission: the identity of transmitted words and their structural membership in a particular sūra are distinct propositions.

§64 · §75 · §112

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146 · An absent father: welfare within a structured legal situation

Marriage · ch. 2; guardians, third topic, issue 3: the father's absence

The Mālikī distinctions turn on distance, knowledge of the father's whereabouts, maintenance, protection and the woman's need to marry. Ibn Rushd then suggests that urgent risk might justify the ruler's intervention even when the father is relatively near. This is a concrete use of welfare-oriented reasoning, not an unrestricted power to legislate. Its relation to the Darūrī's demand for an acknowledged warrant remains a question of interpretation: the later case develops an existing institution's purpose, but does not expressly cite that earlier restriction.

§146 · §217

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158 · Touching women: equivocation, generality and counterevidence

Purification from ritual impurity · Book of Wuḍūʾ, ch. 4, issue on touching women

Ibn Rushd explains that touching in Arabic can mean contact by the hand or signify intercourse. Among those taking bodily contact, some require pleasure and others do not; reports about contact between the Prophet and ʿĀʾisha enter the assessment. The first disagreement concerns competing meanings, the second the scope of a selected meaning. This clarifies why the Darūrī distinguishes equivocation from generality: collecting two possible meanings is not the same operation as including all instances under one universal.

§158 · §167 · §177

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160 · Minimum dower: clarification cannot be postponed beyond need

Marriage · ch. 2; conditions of contract; dower, first topic, issue 2: its amount

In Sahl's marriage report, the request for even an iron ring is taken against a fixed minimum. Ibn Rushd expressly argues that a required threshold would have needed explanation at that moment. He also disputes the premises that dower is purely worship and that worship must always be quantitatively fixed. This is a direct application of the rule against delaying clarification beyond need, rather than a merely suggestive similarity supplied by the present editor.

§160 · §23 · §166

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167 · The sales-session option: what counts as “separation”?

Sales · part 3, conditions of validity, ch. 1: the contract and the parties’ option before separation

Mālik and Abū Ḥanīfa make the completed exchange binding without physical separation; al-Shāfiʿī and others retain the session option. Ibn Rushd examines whether the report concerns bodily separation or completion of bargaining. He weighs the strong Ibn ʿUmar report against Medinan practice, another report’s weakness, analogies to other contracts, and the general command to fulfil contracts. The case joins semantic interpretation to evidential preference: a plausible lexical reinterpretation is not enough unless proportionate evidence supports it.

§167 · §138 · §166 · §256

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171 · Guardianship: a disputed condition cannot be established by ambiguity alone

Marriage · ch. 2, conditions of validity; guardians, first topic: whether guardianship is a condition

In examining marriage guardianship, Ibn Rushd tests the scope of Qurʾānic expressions and the guardian-permission reports rather than treating every apparent address to guardians as a decisive condition of validity. He also considers whether such a widespread requirement could have remained insufficiently explained. The case exemplifies the evidential burden for a restrictive interpretation. It is especially pertinent to Darūrī §171, which rejects an excessively remote narrowing of the permission report; the Bidāya’s fuller argument must not be reduced to that single objection.

§171 · §160 · §166

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201 · Pilgrimage now or later: a control against a simplistic application

Pilgrimage · first kind of inquiry: when the pilgrimage obligation falls due

Ibn Rushd explicitly denies that the dispute is merely whether an unrestricted command demands immediacy. The competing arguments compare the first available pilgrimage season with the beginning or end of prayer-time, consider the interval when pilgrimage cannot be performed, and assess the risk of death before another year. This is a useful counterexample to a mechanical concordance: Darūrī §201 supplies distinctions, but the Bidāya warns that the applied dispute has additional temporal structure.

§201 · §21 · §25

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204 · Completing ʿumra does not by itself prove an initial duty to begin it

Pilgrimage · first kind of inquiry: the legal status of ʿumra

One argument for obligation invokes Q 2:196’s command to complete pilgrimage and ʿumra. The opposing reading takes completion to govern an observance once begun, whether its initiation was obligatory or voluntary. Ibn Rushd also records conflicting reports. The lesson is the distinct scope of commands: an obligation to complete an undertaking need not establish an obligation to undertake it. Compare the Darūrī’s insistence that a further performance needs its own warrant, rather than extending a command beyond its demonstrated conditions.

§204 · §49 · §205

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206 · Menstrual divorce: a forbidden act may still have legal effect

Divorce · first division, ch. 2: Sunnī and irregular divorce; divorce during menstruation

The majority count a divorce pronounced during menstruation, while another position does not. Ibn Rushd distinguishes conditions of validity from conditions of proper or complete performance and examines the command that Ibn ʿUmar take his wife back. This provides an especially clear application of the Darūrī's question about prohibition and invalidity. Whether an act is forbidden and whether it produces a legal consequence are different inquiries; their relation must be demonstrated from the relevant address and reports.

§206 · §28 · §56

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211 · Foetal compensation: the identity of the right-holder matters

Offences and injuries · second part, compensation; accidental loss of a foetus, question "to whom is it due?"

Mālik, al-Shāfiʿī and Abū Ḥanīfa treat the compensation as inheritable by the foetus's heirs. Rabīʿa and al-Layth assign it to the mother, comparing the foetus with one of her bodily parts. The dispute illustrates that identifying the legal subject precedes assigning a consequence. It is related to Darūrī §211's caution about the original and derivative terms of an analogy, not a textual claim that the two passages explicitly cross-reference each other.

§211 · §218 · §238

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214 · Jewellery: resemblance to usable possessions or to monetary wealth?

Zakāt · second division: assets subject to zakāt; gold and silver jewellery

The Ḥijāzī jurists exempt jewellery intended for adornment; Abū Ḥanīfa includes it. Ibn Rushd attributes the disagreement chiefly to its double resemblance: usable possessions on one side, gold and silver serving exchange on the other. Conflicting reports matter, but he regards them as weak, especially the exemption report. This is a particularly accessible example of competing analogical descriptions; disagreement about the case's legally relevant likeness need not amount to disagreement about the underlying commodity itself.

§214 · §218 · §238

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217 · Deathbed divorce: blocking an evasion without erasing doctrinal difficulty

Divorce · second division, ch. 2: irrevocable divorce during fatal illness

Some jurists preserve the divorced woman's inheritance because the husband may be evading her entitlement; others apply divorce's ordinary consequences. Ibn Rushd expressly identifies blocking the means (sadd al-dharāʾiʿ) as the issue, but also questions a hybrid status retaining only selected effects of marriage. He rejects a claim of Companion consensus because Ibn al-Zubayr's disagreement is known. Thus purposive prevention and proof of consensus require distinct warrants; the case is not evidence that every welfare argument is self-validating. The Darūrī itself cites this case in §217 while rejecting excessively remote welfare arguments; the difference of framing is therefore substantive.

§217 · §135 · §137

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218 · Ribā in foodstuffs: competing identifications of the operative feature

Sales · part 2, causes of invalidity; ribā in the named foodstuffs and their analogues

Mālikī analysis emphasizes staple, storable food; al-Shāfiʿī emphasizes edibility; Ḥanafī reasoning emphasizes weight or measure. Ibn Rushd treats the dispute as identifying the meaning behind the named commodities, while also evaluating the rival rationales. This corresponds closely to the Darūrī's account of resemblance and uncertain grounds. Yet the Bidāya's comparative assessment is more developed than a blanket dismissal: no uniform verdict on all "analogy" should be imported from either book into the other.

§218 · §212 · §214 · §238

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223 · Dower and the theft threshold: verbal resemblance is not one legal meaning

Marriage · ch. 2; dower, first topic, issue 2: critique of the minimum-dower analogy

The proposed analogy sets the minimum dower by the monetary threshold for theft. Ibn Rushd objects that the shared description of bodily "authorization" masks different meanings: punishment and injury differ from lawful marital enjoyment and affection. The relevant similarity must be one in meaning, not merely words, and must ground the original ruling. He distinguishes using this weak analogy to select an amount from establishing that a minimum exists at all.

§223 · §158 · §218

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227 · Triple divorce after mutual imprecation: the limits of tacit approval

Divorce · first division, ch. 2: whether three divorces may be pronounced together; the report of ʿUwaymir

One argument relies on the Prophet's not objecting when ʿUwaymir pronounced three divorces after mutual imprecation (liʿān). The counterargument is that liʿān had already severed the marriage: the utterance then effected no further divorce. Silence cannot establish permissibility for an act whose legally relevant object was absent. This is a precise application of Darūrī §227's contextual restriction: approval must concern the very act and circumstances for which authority is being claimed.

§227 · §150 · §229

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237 · A mistaken qibla: required success or adequately conducted inquiry?

Prayer · second division, conditions; facing the qibla, second issue

Al-Shāfiʿī requires repetition when an error in direction becomes known; Mālik and Abū Ḥanīfa do not impose the same unconditional repetition after due inquiry. Ibn Rushd identifies disagreement about whether correct orientation or the act of inquiry is required, and weighs a report against analogy with prayer before its time. The case illuminates Darūrī §§237–245 without proving that every mujtahid's conclusion is true: excusing an error and making its conclusion correct remain different claims.

§237 · §204 · §243

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243 · A physician's mistake: compensation need not imply moral wrongdoing

Offences and injuries · second part, compensation; accidental injury caused in medical treatment

Ibn Rushd reports compensation for a treatment error, while also recording a Mālikī exemption for a qualified practitioner and agreement on liability for an unqualified intruder. The analogy is with accidental injury; there is further disagreement about which fund bears payment. This is an illustrative legal parallel to the Darūrī's distinction between error and sin. It does not assimilate medical judgement to every form of juristic inquiry, nor does compensation alone establish culpability.

§243 · §38 · §244

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246 · Cupping while fasting: three ways of treating conflicting reports

Fasting · ch. on acts from which the fasting person abstains; cupping

A report invalidating the fast of cupper and cupped is set beside the report that the Prophet was cupped while fasting. Ibn Rushd describes disagreement over prohibition, dislike and permissibility, and examines preference, reconciliation and relinquishing the conflicting proofs. This makes concrete the Darūrī's alternatives when evidence appears equipollent. Returning to an original rule is itself a reasoned response to evidential failure; it is not the same as choosing whichever report one happens to prefer.

§246 · §214 · §247

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256 · Deferred animal barter: conflict can concern scope as well as authenticity

Sales · part 2, ribā; exchanging animals with deferred delivery

Reports allowing an animal to be exchanged for more animals with later delivery stand against a prohibition of deferred animal-for-animal exchange. Ibn Rushd records different evaluations and reconciliations, including Mālikī attention to whether the animals have distinct uses. The disagreement is not only over which chain is stronger: a proposed distinction of legal purposes may reconcile reports which otherwise conflict. This illustrates why Darūrī §§256–257 insist on a stronger judgement rather than an exhaustive mechanical list of preference rules.

§256 · §213 · §257
